

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2024CLCL027146: CAPITAL ONE, N.A. vs PATRICK F FINNERTY
08/18/2026 in Department 21
Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Capital One, N.A.’s Motion for Order that Matters in Request for Admission of Truth of Facts Be Deemed Admitted (*Unopposed*)

Tentative Ruling: Plaintiff Capital One, N.A.'s Motion for Order that Matters in Requests for Admission Be Deemed Admitted is GRANTED, provided Defendant has not served proposed responses substantially complying with Code Civ. Proc. § 2033.220 before the hearing.

Plaintiff served Requests for Admission, Set One, by mail on October 20, 2025, at 411 Walnut Street, No. 8033, Green Cove Springs, Florida 32043, the same address Defendant supplied in his July 1, 2025 Answer. Plaintiff's counsel declares that no responses were received. Service and notice appear proper. No meet-and-confer was required.

Pursuant to Code Civ. Proc. § 2033.280, the Court DEEMS ADMITTED the truth of the matters specified in Plaintiff's Requests for Admission, Set One, Nos. 1 through 5. The Court does not deem the genuineness of any documents admitted because the Requests for Admission sought admission only of the truth of specified facts, and Plaintiff's notice seeks only that relief. If Defendant has served substantially compliant responses before the hearing, the motion shall instead be DENIED pursuant to Code Civ. Proc. § 2033.280(c).

No monetary sanctions are awarded because Plaintiff did not properly notice a request for monetary sanctions as required by Code Civ. Proc. § 2023.040.

Plaintiff to give notice within two (2) court days.

Discussion:

Plaintiff establishes that it served the RFAs by mail on October 20, 2025, at the Florida address Defendant supplied in his Answer, and counsel declares that Plaintiff received no responses.

Under Code Civ. Proc. § 2033.280, a party who fails to timely respond waives objections, and the propounding party may move to have the requested matters deemed admitted. The Court “shall” grant the motion unless the responding party serves, before the hearing, proposed responses substantially complying with Code Civ. Proc. § 2033.220. No meet-and-confer is required before bringing a motion under Code Civ. Proc. § 2033.280.

Plaintiff has therefore established the statutory prerequisites for relief. Unless Defendant serves substantially compliant responses before the hearing, the motion should be GRANTED.

The scope of the order should conform to the relief actually sought. Although Code Civ. Proc. § 2033.280(b) generally authorizes a court to deem admitted both the truth of matters and the genuineness of documents when those matters were requested, Plaintiff's RFAs requested only admission of the truth of specified facts. The “Truth of Facts” box is checked, while “Genuineness of Documents” is not. Moreover, Plaintiff's notice of motion expressly seeks an order deeming the “truth of all specified facts” admitted. Accordingly, the Court deems admitted only Requests for Admission Nos. 1-5 concerning the specified facts and shall not make any ruling concerning the genuineness of documents.

Code Civ. Proc. § 2033.280(c) provides for a mandatory monetary sanction when the failure to timely respond necessitated the motion. Here, however, Plaintiff's notice does not request a monetary sanction, identify the person against whom sanctions are sought, or specify an amount supported by declaration. Code Civ. Proc. § 2023.040 requires such notice and evidentiary support. Similarly, the moving papers do not seek sanctions. No monetary sanctions are therefore be awarded on the present papers.